

**JUSTIFICATION REVIEW DOCUMENT
FAR Part 12 Justification and Approval
For Other than Full and Open Competition**

Program/Equipment: Newborn screening services for the Department of Pathology at Evans Army Community Hospital (EACH), Fort Carson, CO

Authority: Title 41 United States Code (U.S.C.) §1901 as implemented in Federal Acquisition Regulation (FAR) 12.102(b), restricting competition for acquisitions valued over the Simplified Acquisition Threshold.

Amount: \$536,700

Prepared by:	Troy A. Loge Contract Specialist troy.a.loge.civ@health.mil	Phone: 915.724.0924 Date: 26 February 2026
Contracting Officer:	Timothy T. Hoerz Contracting Officer timothy.t.hoerz.civ@health.mil	Phone: 254.287.1660 Date 26 February 2026
Technical:	Mary-Kay Hilken Health Technician mary-kay.hilken.civ@health.mil	Phone: 719.526.7307 Date: 26 February 2026
Requirements:	Brian D. Oliver COR brian.d.oliver8.civ@health.mil	Phone: 719.526.7169 Date: 26 February 2026

Controlled by: USAHCA Controlled by: MRCO-W CUI Category: General Procurement & Acquisitions Limited Dissemination Control: FED ONLY POC: Troy A. Loge, 915.724.0924
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FAR Part 12 Justification and Approval
For Other than Full and Open Competition

1. Requiring Activity: Pathology Laboratory at EACH, Fort Carson, CO.

2. Contracting Activity: Fort Bliss Health Contracting Branch, Medical Readiness Contracting Office – West (MRCO-W), United States Health Contracting Activity (USAHCA)

3. Description of Action: Request approval to award a follow-on \$537,000, non-competitive five-year (base and four one-year options) firm, fixed-price (FFP) definitive contract to Public Health and Environment, Colorado, CAGE: 1GRH0, 4300 Cherry Creek South Dr, Denver, CO 80246-1523. This contract will be fully funded using appropriate fiscal year (FY) Defense Health Procurement (DHP) funds.

4. Description of Services: Newborn screening is required for all infants born in Colorado for 37 metabolic and genetic conditions prior to significant illness, disability or death. Due to House Bill 18-1006, a hearing screening is also required for newborns. A summary of the estimated requirement is as follows:

Description	Quantity	Estimated Unit Price	Estimated Value
Newborn Screening	900	\$115.00	\$103,500
Hearing Screening	900	\$4.00	\$3,600
Birth Certificate Correction	12	\$20.00	\$240.00

Period	Period of Performance	Estimated Value
Base	1 April 2026 to 31 March 2027	\$107,340.00
Option 1	1 April 2027 to 31 March 2028	\$107,340.00
Option 2	1 April 2028 to 31 March 2029	\$107,340.00
Option 3	1 April 2029 to 31 March 2030	\$107,340.00
Option 4	1 April 2030 to 31 March 2031	\$107,340.00
Total		\$ 536,700.00

5. Authority Cited: Title 41 United States Code (U.S.C.) §1901 as implemented in Federal Acquisition Regulation (FAR) 12.102(b), restricting competition for acquisitions valued over the Simplified Acquisition Threshold.

6. Reason for Authority Cited:

a. Background: Per the state of Colorado, Code of Colorado Regulation, 5 CCR 1005-4, it is required that all blood specimens of newborns in or outside institutions and all specimens in conformity with the law be sent to the Colorado Department of Public

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Health and Environment Laboratory for testing. Furthermore, per Code of Colorado Regulation, 6 CCR 1009-6, a hearing screen (initial and secondary) to identify newborns at risk for hearing loss is required.

b. Alternatives: There are no alternatives because Colorado state regulations mandate use of the Colorado Department of Public Health and Environment Laboratory for newborn screening.

c. Impact if not approved: Newborn screening services required by the State of Colorado cannot be performed.

7. Efforts to Obtain Competition: Effective competition is not applicable as Colorado Regulation 5 CCR 1005-4 specifically states that newborn screening must be performed at the Public Health and Environment Laboratory of Colorado.

a. Effective competition: Competition is not anticipated because of Colorado Regulation 5 CCR 1005-4. The contracting officer has or will publish notices required by FAR 5.201 and any bids or proposals received shall be considered.

b. Subcontracting competition: Not applicable IAW FAR 19.109.

8. Actions to Increase Competition: This action is a follow-on to contract W81K0020P0131. Under the previous Justification and Approval (20-RHCO-C-242), the paragraph "Actions to Increase Competition" states: "Competition may remain limited based on Regulation 5 CCR 1005-4 and 6 CCR 1009-6. This requirement will be always be [sic] sole source unless the State of Colorado changes the regulation to allow the public to do the newborn screening testing. However, the requiring activity and contracting office will publish the notice of proposed contract action IAW 5.201 to ensure we have reached as many potential competitors now and in the future. Additionally, the Contracting Officer shall publish the Notice of Intent to Sole Source as required by FAR 5.201."

Those actions were accomplished.

Increased competition cannot be achieved as Colorado Regulation 5 CCR 1005-4 specifically states that newborn screening must be performed at the Public Health and Environment Laboratory of Colorado. The government will continue to monitor Colorado regulation for any changes that increase competition. Prior to exercise of each option, the contracting officer will conduct market research to determine if any other methods have become available. The findings will be documented in the contract file.

9. Market Research: Colorado Regulation 5 CCR 1005-4 mandates use of the Public Health and Environment Laboratory of Colorado rendering limited market research techniques. A sources-sought notice was posted to SAM.gov 12 February 2026 and closed 19 February 2026.

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10. Interested Sources: There was only one response to the sources-sought notice, Revvity Omics, CAGE 9D8X7, however they are ineligible for award because Colorado Regulation 5 CCR 1005-4 mandates use of the Public Health and Environment Laboratory of Colorado.

11. Other Facts:

a. Procurement history: This is an ongoing requirement having been procured on previous sole-sourced contracts W81K0020P0131, W81K0016P0172 and W91YU010P0584.

Contract	Contractor	Procurement Method	Amount	Period of Performance
W81K0020P0131	Public Health and Environment, Colorado	Sole-source FAR 6.302-1	\$880,975.04	1 Oct 2020 – 31 March 2026
W81K0016P0172	Public Health and Environment, Colorado	Sole-source FAR 6.302-1(a)(2)	\$683,996.00	1 Apr 2016 – 30 Sep 2020
W91YU010P0584	Public Health and Environment, Colorado	Sole-Source FAR 6.302-1(a)(2)	\$797,372.60	10 Sep 2010 – 31 Mar 2016

i. Contract numbers and dates of all awarded contracts for these same requirements.

- A. W81K0020P0131 awarded 17 June 2020.
- B. W81K0016P0172 awarded 7 April 2016.
- C. W91YU010P0584 awarded 13 Sep 2010.

ii. The competitive status of those actions.

- A. W81K0020P0131 is a noncompetitive sole-source contract.
- B. W81K0016P0172 is a noncompetitive sole-source contract.
- C. W91YU010P0584 is a noncompetitive sole-source contract.

iii. Authority previously cited if less than a full and open competition was used.

- A. W81K0020P0131: 10 USC 2304(c)(1) as implemented by FAR 6.302-1.
- B. W81K0016P0172: 10 USC 2304(c)(1) as implemented by FAR 6.302-1(a)(2).

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C. W81YU010P0584: 10 USC 2304(c)(1) as implemented by FAR 6.302-1(a)(2).

iv. If any prior contract for this requirement was accomplished using full and open competition or full and open competition after exclusion of sources, include a detailed explanation of the changed circumstances causing this action to now limit the sources. Not applicable.

v. An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys. Not applicable.

vi. An explanation of protests received, if applicable, and actions taken in response to the protest. Not applicable.

b. Impact: Failure to approve this justification would cause a break in the provision of these mandatory services.

12. Technical Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

HILKEN.MARY-
KAY.1189114520

Mary-Kay Hilken
Health Technician, Contract Support Branch

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13. Requirements Certification: I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

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Brian D. Oliver
Contracting Officer's Representative

14. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price/cost to the government for this contract will be fair and reasonable. This determination will be made using price analysis and the independent government estimate.

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Timothy T. Hoerz
Contracting Officer

15. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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Timothy T. Hoerz
Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of newborn screening testing services on an other than full and open competition basis pursuant to the authority of Title 41 U.S.C. §1901 as implemented in 12.102(b), restricting competition for acquisitions valued over the simplified acquisition threshold. The estimated value of the follow-on contract is \$536,700 for a five-year (base and four one-year options) period of performance from 1 April 2026 to 31 March 2031. The approval is subject to availability of funds, and provided that the services herein described have been otherwise authorized for this acquisition.

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Timothy T. Hoerz
Contracting Officer

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